

Before the  
FEDERAL MARITIME COMMISSION  
Washington, D.C. 20573  
Docket No. 25-31  
NIELSEN & BAINBRIDGE, LLC

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

---

**THIRD JOINT STATUS REPORT**

Pursuant to the Presiding Officer's April 10, 2026 Scheduling Order (the "Scheduling Order"), Complainant Nielsen & Bainbridge, LLC ("NBG") and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, "Respondents" and, collectively with Complainant, the "Parties"), by their respective undersigned counsel, have conferred and submit this third joint status report.

**I. Document Production**

1. In recent weeks the Parties have focused on the Scheduling Order's April 20, 2026, deadline for the substantial completion of document and ESI production.

2. For Complainant's part, following its initial production of 21,963 documents on March 23, 2026, Complainant continued its review of additional documents for responsiveness, confidentiality, and privilege. To date, Complainant has made four separate rolling productions: the first on March 23, 2026, consisting of 21,963 documents; a second production on March 30, 2026, consisting of 72,707 documents; a third production on April 17, 2026, consisting of 355 documents; and a fourth production on April 20, 2026, consisting of 48,505 documents. In total, Complainant has produced 143,530 documents to Respondents. At this time, Complainant has

substantially completed its production of documents and ESI and does not anticipate further productions, unless to supplement existing productions.

3. For Respondents' part, Respondents collected 175,980 potentially responsive documents from the ten custodians identified by Complainant in the agreed ESI Protocol. Respondents have worked with their e-discovery vendor to make the following productions:

| <b>Production</b> | <b>Bates Range</b>               | <b>Documents</b> | <b>Pages</b>  |
|-------------------|----------------------------------|------------------|---------------|
| OOCL Prod 001     | OOCL_000001 - OOCL_022362        | 8,401            | 22,362        |
| OOCL Prod 002     | OOCL_022363 - OOCL_022888        | 78               | 526           |
| OOCL Prod 003     | OOCL_022889 - OOCL_023011        | 21               | 123           |
| OOCL Prod 004     | OOCL_023012 - OOCL_023067        | 7                | 56            |
| OOCL Prod 005     | OOCL_023068 - OOCL_023385        | 18               | 318           |
| OOCL Prod 006     | OOCL_023386 - OOCL_023396        | 7                | 11            |
| OOCL Prod 007     | OOCL_023397 - OOCL_023423        | 3                | 27            |
| OOCL Prod 008     | OOCL_023424 - OOCL_028774        | 3,503            | 5,351         |
| <b>Total</b>      | <b>OOCL_000001 – OOCL_028774</b> | <b>12,038</b>    | <b>28,774</b> |

4. In total, Respondents have produced 12,038 documents to Complainant. These documents were identified by running the collected documents against the search terms provided in the ESI Protocol and then deduplicating those results. No documents that were collected from the identified custodians and hit on the search terms were withheld on the basis of privilege or non-responsiveness. At this time, Respondents believe they have substantially completed their production of documents and ESI and do not anticipate further productions.

5. The Parties met on April 6, 2026, and have since had multiple exchanges of correspondence as part of a meet and confer process to discuss outstanding discovery issues and continued their correspondence from prior months on those matters. The Parties have continued to work cooperatively to ensure production is substantively responsive and contains the necessary scrutiny to protect privilege and confidentiality while adhering as closely as possible to the Presiding Officer's schedule.

6. There remains the potential need for third-party discovery, which will depend on the content of the Parties' ongoing review of the document productions.

## **II. Depositions To Be Scheduled**

7. The Scheduling Order provides that the time period for depositions of fact witnesses will close on June 22, 2026.

8. For Complainant's part, Complainant has been in the process of comprehensively reviewing both Respondents' productions to date, as well as its own production of documents, and anticipates completing its review to identify potential deponents of its own by May 15, 2026. However, in light of the fact that Respondents have produced only 12,038 documents compared to the 143,530 documents Complainant produced to Respondents, Complainant would be greatly prejudiced by the significant disparity between the Parties' productions, particularly ahead of taking depositions of Respondents' witnesses. This leaves Complainant a significant challenge to identify and address deficiencies before the Presiding Officer, completing its review of Respondents' documents, and preparing for depositions.

9. For Respondents' part, Complainant's delay in production of documents until several weeks after Respondents' had produced documents has prejudiced Respondents. Nevertheless, Respondents have identified five potential Complainant witnesses, in addition to the corporate witness(es) they intend to depose in this matter and are prepared to proceed to depositions according to the deadlines of the procedural schedule. Respondents also contend that Complainant cannot be prejudiced by its own voluminous document production given that this action was initiated nearly sixteen months ago and Complainant had an obligation to review its own documents prior to bringing claims against Respondent.

## **III. Respondents' Southern District of Texas Action**

10. On May 5, 2026, Respondents filed a complaint in the United States District Court

for the Southern District of Texas, Houston Division, Case 4:26-cv-03606, against the United States, the Federal Maritime Commission (“Commission”), Chief Administrative Law Judge Erin M. Wirth, and the Presiding Officer, in their official capacities.

11. Respondents seek declaratory and injunctive relief, arguing that the Commission administrative proceedings pending against them are unconstitutional and requesting that the court halt those proceedings and vacate the decision by Judge Wirth in *20230930-SK-Butterfly-1, Inc. f/k/a Bed, Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*. FMC Docket No. 23-02.

12. On May 6, 2026, Complainant’s counsel emailed Respondents’ counsel regarding the related federal action and requested confirmation as to whether Respondents intended to file any further motions before Judge Wirth in FMC Docket 23-02 or before the Presiding Officer in the current matter. Respondents’ counsel replied that they did not intend to file any further motions in either case.

Dated: May 7, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

*Mohini Priya Banerjee Rarrick*  
Mohini P.B. Rarrick  
(818) 235-9753  
mpriya@huthreynolds.com  
Karl C. Huth  
(212) 731-9333  
huth@huthreynolds.com  
Matthew J. Reynolds  
(646) 872-9353  
reynolds@huthreynolds.com  
Gregory A. Crapanzano II  
(917) 575-3440  
gcrapanzano@huthreynolds.com  
41 Cannon Court  
Huntington, NY 11743

*Counsel for Complainant Nielsen &  
Bainbridge, LLC*

BLANK ROME LLP

/s/ Keith B. Letourneau  
Keith B. Letourneau  
Evan Spencer  
717 Texas Avenue, Suite 1400 Houston, Texas  
77002 (713) 402-7640  
Keith.Letourneau@BlankRome.com  
Evan.Spencer@blankrome.com  
Matthew Thomas  
1825 Eye Street N.W.  
Washington, DC 20006  
(202) 772-5971  
Matthew.Thomas@BlankRome.com

JEFFREY/FENNEMAN LAW + STRATEGY,  
PLLC

/s/ Rebecca A. Fenneman  
Rebecca A. Fenneman  
Eric C. Jeffrey  
Kaya C. Massey  
Nicholas L. Webb  
700 12th St., NW, Suite 700  
Washington, DC 20005  
Tel. 202-904-2301  
RFenneman@JeffreyFenneman.com  
EJeffrey@JeffreyFenneman.com  
KMassey@JeffreyFenneman.com  
NWebb@JeffreyFenneman.com

*Counsel for Respondents Orient Overseas  
Container Line Limited and OOCL (Europe)  
Limited*